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Land Reforms: Evidences of Reversal in Orissa

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Abstract

There is evidence to be had from an Action Research Project in Puri district of Orissa that the revenue officials connive with the landlords to delete entries in record-of-rights to disempower the assignees in respect of the land that they have enjoyed for decades. They plead their incapacity to help and palm off the problem to the Civil Courts where the assignees do not stand even the ghost of a chance. In this article we examine some of the findings from the Action Research Study conducted in 10 villages of Puri and Brahmagiri Blocks of Puri district in Orissa.

Keywords

Introduction

The land relations in the pre-independence India were heavily skewed wherein 7 per cent of the landowners owned 53 per cent of the land[1] and strong infeudation ruled the production relations.[2] The situation has not changed significantly in respect of ownership and operated area of land. According to the NSSO Report on landholding (2003), 95.65 per cent of the farmers are within the small and the marginal categories owning approximately 62 per cent of the operated land areas while the medium and the large farmers who constitute 3.5 per cent own 37.72 per cent of the total area.[3] Years of Land Reforms have failed to improve the matters as the dilution of holding which are in evidence are also on account of the demographic pressure and cannot be solely attributed to measures of Land Reforms.[4]

[1] Despande, R.S. (2007) 'Emerging Issues in Land Policy'; Asian Development Bank, India Resident Mission (IRM); New Delhi; pp 55–77.
[2] Sinha, B.K. & Pushpendra (1999). 'Land Reforms in India: An Unfinished Agenda'; SAGE Publications Inc; New Delhi; pp. 85–106.
[3] NSSO, 2003.
[4] Appu, P.S. (1997) 'Land Reforms in India'; A Survey of Policy, Legislation and Implementation, New Delhi, Vikas Publishers, New Delhi.

The State of Orissa represents an amalgamation of 24 native principalities and areas governed by different revenue systems and tenancy laws which were merged to carve out new districts. Soon after independence measures like Tenant Protection Act, 1948 and Tenants Relief Act, 1955 were formed which were subsequently to be overtaken by a more comprehensive Land Reforms Act, 1960. Like in the rest of the country the ceiling law in Orissa was allowed to evolve in gradual measures; the Land Reforms Act, 1960 initially provided for a ceiling limit of 33 standard acres which was reduced to 20 standard acres in 1965 and 10 standard acres in 1972 in wake of the National Guidelines. The distribution of ceiling land took place in fits and jerks, the bulk being distributed in the early and mid 70s.

The Extent and the Scope of the Study

In Puri district till the 30th June 2007 a total of 7,938.08 acres of ceiling surplus and 3,995.83 acres of Government Wasteland had been distributed amongst the landless poor. The Centre for Agrarian Relations and Disaster Mitigation of the National Institute of Rural Development referred hereafterto as the CAS&DM, NIRD undertook an Action Research to assess the current status of the land, to organise the landless and land allotees to exercise their legal entitlements, to create an interface with the district administration and to highlight the issues relating to alienation and restoration of lands. The study was carried on in 10 villages of Puri and Brahmagiri Blocks of Puri district including Sasandamodarpur, Jagannath Bidhyadharpur, Girala, Rebatiraman, Gadarodganga, Harichandanpur, Doani, Budhakhera, Kanakadadeep and Godara. The selection of villages was made on the basis of the revenue records from the Tehsil Office, discussions with the PRI functionaries and the villagers on the criteria of the number of assignees, the population of the SC/STs etc. Table 1 presents the extant and the demographic profile of the study area.

The study villages are spread over five Panchayats in these Blocks, namely Gadaroadanga, Kusubenti, Samangha, Guruala and Sasandamodarpur with a total population of 8,998 persons comprising 1,434 housholds. The upper castes comprise 1,166 households (81 per cent) of the total population and hare the landowners while the SC families number 2,214 organised over 222 housholds or 15 per cent of the population while the STs are merely 90 comprising 46 households. The larger of these villages include Sasandamodarpur (1,388), Jagannath Bidhyadharpur (1,899) and Gadaroadanga (1,299). The SC population is the largest in Rebatiraman (605, Jagannath Bidhyadharpur (439) and Sasandamodarpur (190).

Most of these families covered in the study are Below Poverty Line (BPL) and in two of the villages namely Harichandpur and Kanakadadeep not a single family is Above Poverty Line (APL) despite the fact that the Puri district is resource rich with high degree of fertility in its land. In village Kankadadeep the entire population

Table 1: Extant and Demographic Profile of the Study Area

Sl. No.	Village	Population Details												
		SC		ST		OC		OC				Total		
		Male	Female	Male	Female	Male	Female	Total	SC	ST	OC	Male	Female	Total
1	Sasandamodarpur	88	102	–	–	605	593	219	33	–	186	605	593	1,388
2	Jagannath Bidyadharpur	203	236	4	3	697	756	311	63	2	246	904	995	1,899
3	Rebatiraman	299	306	–	–	82	89	125	25	–	100			
4	Girala	76	77	–	–	254	233	94	19	–	75	330	310	640
5	Gadaroadanga	39	30	–	–	539	691	238	13	–	225	578	721	1,299
6	Harichandanpur	91	83	–	–	105	106	76	36	–	40	196	189	385
7	Doani	3	3	38	45	75	74	78	5	44	29	116	122	238
8	Budhakera	7	5	–	–	403	421	94	2	–	92	410	426	836
9	Kankadadeep	189	197	–	–	–	–	44	–	–	44	189	197	386
10	Golara	95	85	–	–	507	455	155	26	–	129	602	540	1,142
	Total	1,090	1,124	42	48	3,267	3,418	1,434	222	46	1,166	4,299	4,590	8,989

Source: District Census Handbook, 2001 updated.

Table 2: Economic Status of the Study Villages

Sl. No.	Name of the Village	Total HHs	Poverty Status	
			BPL	%
1	Sasandamodarpur	219	189	86.3
2	Jagannath Bidyadhar pur	311	265	85.2
3	Rebatiraman	94	23	24.4
4	Girala	125	76	60.8
5	Gadaroadanga	238	142	59.6
6	Harichandanpur	76	85	100
7	Doani	78	19	24.3
8	Budhakera	94	51	54.2
9	Kankadadeep	44	60	100
10	Golara	155	132	85.1
	Total	1,434	1,042	72.6

Source: District Census Handbook and Poverty Survey, 2003.

comprises SCs. Table 2 indicates the position of the APL population. This table also indicates a concentration of poverty amongst the SC/ST population.

There is reasonable infrastructure in place in the Study villages. Out of the 10 villages studied 6 are connected by macadam road while the rest have fair weather road connectivity to the district headquarters of Puri which serves as both the social and commercial hub of the area. There is a regular bus service available to the commuters for Puri and for other parts of the district. Each village is having a school and the attendance of both male and female children is fairly high. All villages have telephone and electricity connection. The landowning households of general categories usually have gadgets like TV sets and mobile phones. Presence of Anganwadi and ASHA workers is to be noted in these villages. IAY houses have been constructed in every village. Potable drinking water remains a problem and the people use canal and pond water for domestic purposes. Table 3 indicates the status of infrastructure in the Study villages.

Land Ownership Status

Puri, like other coastal districts is endowed with fertile lands which provide sustenance to large parts of the district. Even though the lands here are classified as high, medium and low denoting the level of fertility all lands are fertile. The lands are classified into two major categories—the private and Government lands. The private lands include the homestead and the agricultural lands. The Government lands include Forest, Gochar and Debottar (dedicated to deities, land having common usages, cultivable and uncultivable wastelands. The community

Table 3: Status of Infrastructure in the Study Villages

Sl. No.	Name of the Village	Road Comm.	School	ICDS	Tube Wells	Tel	No. of HHs Electrified	No. of IAY Houses
1	Sasandamodarpur	Pucca	Prim	2	08	Y	129	15
2	Jagannath Bidyadharpur	Kuchha	Prim	1	06	Y	145	16
3	Girala	Pucca	Prim/M.E	Nil	03	Y	47	04
4	Rebatiraman	Pucca	Prim/M.E	Nil (Asha)	05	Y	53	50
5	Gadaroadanga	Pucca	U.G. M.E	1	06	Y	122	34
6	Harichandanpur	Pucca	Nil	1	05	Y	30	13
7	Doani	Pucca	Prim/M.E	1	–	Y	10	08
8	Budhakera	Kuchha	Prim/M.E	Nil	03	Y	40	07
9	Kankadadeep	Kuchha	Prim/M.E	1	03	Y	13	03
10	Golara	Pucca	Prim/M.E	1	08	Y	52	12

Source: Compiled from data of District Administration of Puri (Welfare, Water Resources, PRA and Development Sections).

lands include Jalachar, gochar, Godanda, camping grounds, burial and cremation grounds, Haat and Bazaar lands, etc and are treated as the reserve lands of the Government. Deity lands are land dedicated to the deities and for their ritual and other support. The Debottar Lands are, however, loosely managed and there is no proper accounting of their produce. They are being cultivated by tenants who usually give a fixed income either in kind or in case to the temple. Lord Jagannath also possesses significant lands in the subject villages. These lands are above the ceiling limits under the Orissa Endowment Act and family members of the temple authorities are associated with the management of such lands. Conflicts are reported over the possession and management of such Debottar lands.

There is greater availability of Government wasteland in Brahmagiri in comparison to Puri. The land in vicinity of Chilka Lake has a special value of its own. Some of these lands have emerged from alluvial action of Chilka Lake over the course of years. Table 4 denotes the status of land in the Study villages.

Agriculture is the principal source of sustenance to the people. While all Blocks in Puri Tehsil have irrigation facilities cultivators in Brahmagiri practice rainfed agriculture. The classification of land is high, medium and low. The low lying lands are the best for paddy cultivation but they remain submerged for a part of the year. The total cultivable land in these selected villages is calculated to be 4,254.5 acres and the percentage of low land in the villages is 33 per cent. The Table 5 denotes the land classification in selected villages.

Agriculturally the subject villages are well-developed. Double cropping is practised under conditions of irrigation. In the areas adjoining Chilka Lake the low lying areas are generally waterlogged for some parts of the year wherein prawn culture and pisciculture is being practised. Prawn culture is being treated as

Table 4: Status of Land in Study Villages

Sl. No.	Name of the Village	Geographical Area	PRIVATE LAND	Govt. Land	Deity Land	Govt. Land, Forest, Goachar Other		
1	Sasandamodarpur	661.76	650.32	11.44	–	–	–	11.44
2	Jagannath Bidyadharpur	724.83	2.74	722.09	–	–	–	2.74
3	Girala	255.03	57.69	197.34	–	–	–	57.69
4	Rebatiraman	70.12	16.79	62.33	–	–	–	38.92
5	Gadaroadanga	675.59	136.67	538.92	5 Acres	300	200	38.92
6	Harichandanpur	151.34	22.66	128.68	–	16.13	1.050	5.48
7	Doani	20.00	2.92	12.08	5 Acres	–	1.50	1.42
8	Budhakera	–	–	–	–	–	–	–
9	Kankadadeep	–	–	–	–	–	–	–
10	Golara	729.44	348.40	373.50	7.54 Acres	–	42.03	306.37
	Jagadal (Revenue)	2,366.22	702.01	1,664.21	–	11.94	127.60	1,524.67

Source: RCDC Survey.

Table 5: Land Classification in Select Villages

Sl. No.	Name of the Village	Total Geographical Area (in Acres)	High	Medium	Low	Total Cultivable Land	Irrigation Status
1	Sasandamodarpur	665	37.50	175.00	362.50	575	Y
2	Jagannath Bidyadhar pur	730	25	250	400	675	Y
3	Girala	368.275	62.5	135	152.5	350	Y
4	Rebatiraman	80	25	30	–	55	Y
5	Gadarodanga	654.15	70	135	115	320	N
6	Harichandanpur	152.775	5	12.5	17.5	35	N
7	Doani	22.25	5	5	10	20	N
8	Budhakhera (H)						N
9	Kankadadeep (H)						N
10	Golara	737.55	152.5	282	290	725	N
11	Jagadal (RV)	2,395.725	315	585	600	1,500	
	Total	5,805.725	697.5 12%	1,609.5 28%	1,947.5 33%	4,254.5 73%	

Source: Baseline Report on the Restoration of Land to the Ceiling Surplus and Government Wasteland.

a commercial activity and fetches handsome return to the people. Paddy continues to be the main crop and 94 per cent of the land is covered by it. During the Rabi season black grams, pulses, green gram and vegetables are being grown. The productivity being high even 0.75 acres of land are able to provide sustenance to a family. Hence, there is premier on possession of land.

Homestead Lands

The Study villages display a great shortage of homestead lands on account of mounting demographic pressures. The land is inherited from one generation to the next and the Patta is held jointly. Large families find space problem which results in conflict within the family. Updating of homestead record and demarcating the land is not done on a regular basis and the conflicting situation continues year after year. Issuing land passbook to all the households is in process but 100 per cent achievement is not found in any village. It is also found that new families settled in the village find difficulty to get homestead Patta, even though they construct their houses on Government land. In villages like Rebatiraman, a few families have settled in Temple land of Lord Jagannath for more than 15 years. In some cases like village Doani, the land given for homestead purpose has been converted to 'Gramya Jangal' category in the settlement process. As a result, the beneficiaries are struggling to get entitlement over the piece of land even though they possess 'K' form Patta it is an intimation slip and first written document from the Revenue Departmentto the allotee. This enables an allotee to claim rights over the land, pay tax and get the final Patta for the issued land and are in possession of the land. This is the reason 5.7 per cent of total households do not have homestead Patta. In village Doani and Jagannath Bidyadharpur, a few households have got 'Sikkimi' Patta.[5] These Sikkimi Patta holder tenants reside in their landlord's gifted land and pay one fourth of the rent to the landlord, where as the landlord pays the tax to the Government.

Homestead Land in 1970s and Gramya Jangal in 1980s: Case from Doani-Brahmagiri

Doani is a revenue village of Panchayat-Gadaroadanga in Brahmagiri Block. It is situated on left side of Puri–Satapada highway about 25 kms away from district headquarters of Puri and very close to both Bay of Bengal and Lake Chilka. The village is surrounded by cashew trees, casuarinas and mango trees. Although it is a revenue village, it has always been identified with another revenue village called Gadarodanga which is very close to this village. Even their names have been

[5] Singh, S.K. (1999). A Shikmi Patta is a deed of settlement of intermediate rights where a tenant resides on the land of the some landlord; his tenurial rights are recognised but the ownership continues to reside with the landlord. In this capacity he is entitled to intermediate protection ; Centre for Rural Studies, Lal Bahadur Shastri National Academy of Administration (in association with) Greenfield Publishers, Mussoorie.

recorded in the voter list of village Gadarodanga. In 1972/1973, Government wasteland was distributed among beneficiaries in both Gadaroadanga and Doani villages wherein 64 beneficiaries were allotted 4 decimals each of land for homestead purposes free of cost. At the same time, 16 decimals of land were given for kitchen garden purpose and ₹12.60 was collected from the beneficiaries as Salami payment in 1973. The beneficiaries were issued 'K' form or intimation slip from the Revenue Department. At the time of the issue of the Pattas Brahmagiri was not a Tehsil and was operating under Puri Tehsil. The beneficiaries were informed that they would be given Patta only after settlement operations were concluded. However, during the process of settlement in 1973–1974 no beneficiary could approach the settlement officials. The Tehsil officials also omitted to inform the settlement officials to get their record-of-rights corrected. In 1976 the land was converted from homestead category to village forest category and the beneficiaries were deprived of their right to get a Patta for their homestead land. It is interesting to note that the beneficiaries were granted ₹2000 each from the same revenue Block office to construct houses under 'Jayanti Griha Nirman Yojna,' land allotted. Along with this other developmental activities like digging well, pond, temple and road construction also took place in the village funded through Block. Till now 33 households are occupying their houses with the hope that someday they would be given Patta for their homestead land while the remaining have quit the lands under pressure from the revenue Block.

Table 6 gives the status of the Households having land Patta. This indicates that there that the households which do not have Pattas is not insignificant.

Table 6: Households Having Land Pattas

Sl. No.	Name of the Village	Total HHs	No of HH-having Household Land Patta	%	No of HH Having No Household Land Patta	%
1	Sasandamodarpur	219	219	100		
2	Jagannath Bidyadharpur	311	311	100		
3	Girala	94	94	100	–	0
4	Rebatiraman	125	107	85.6	18	14.4
5	Gadarodanga	238	227	95.3	11	4.7
6	Harichandanpur	76	65	85.5	11	14.5
7	Doani	78	42	53.8	36	46.2
8	Budhakhera	94	89	94.7	5	5.3
9	Kankadadeep	44	44	100	0	0
10	Golara	155	154	99	1	1
	Total	1,434	1,352	94.3%	82	5.7%

Source: RCDC Survey.

Land Ceiling

The District revenue records indicate that a total of 7,938.081 acres were declared as ceiling surplus in the district out of which 2,101.423 acres were distributed as on 30 June 2007, comprising only 26 per cent of the total area. About 5,526.658 acres of land, which amounts to 69 per cent of the total land remains to be distributed. Most of these lands are litigated. It is also important to note that the district figures do not match the Tehsil information. Figures of Brahmagiri Tehsil available at Revenue Section of the Office of the District Collector, Puri are conflicting. Table 7 reflects the status of ceiling land in the district. The findings are very significant in the respect that these cases are mostly locked up in litigation. However, on closer scrutiny many of the cases have been pending before the Revenue Courts and have not been disposed off for decades. There appears not concerted effort to get the cases pending before the Civil Court or the Hon'ble High Court. The sense of urgency appears totally missing. The focus of the District Administration is instead on the execution of the Rural Development and the other related programmes.

In Puri, like most other areas of Orissa, the big landlords have taken advantage of the weak land legislation. Big patches of lands were transferred to the near and dear ones of the landlords and were sold to others to avoid the litigations. Moreover, good patches were retained by the influential land lords taking advantage of their influential status. It is also a fact that in Puri, Brahmagiri, Nimapada and Krishna Prasad Tehsils most of the ceiling surplus land is litigated. The statistics collected from Tehsil sources reveal that around 69 per cent of land is litigated in the district. The powerful landlords utilise their money and muscle power to be in possession of their good patch of land. There is no such state mechanism to restore or ensure possession over the land. A good patch of land is always a matter of controversy. This is the reason, the distribution of land is limited to pen and paper. On the contrary, the landlords always argue that, while

Table 7: Tehsil-wise Status of Ceiling Land Distributed as on 30 June 2007

Sl. No.	Name of the Tehsil	Total Land Declared as Ceiling (in Acres)	Area Distributed (in Acres)	Balance Area to be Distributed (in Acres)	Remark
1	Puri	475.730	162.790	2.940	310.000 Reserved for forest
2	Brahmagiri	***6,411.336	1,411.393	4,999.943	Litigated
3	Satyabadi	–	–	–	Not available
4	Pipili	324.495	196.865	127.630	Litigated
5	Nimapada	578.060	231.075	346.985	Litigated

Note: ***The information with **** was collected from Tehsil office Brahmagiri and the rest from Revenue Section, Office of the District Collector, Puri.

vesting land the revenue authorities have acquired the good patches of land and left the bad patches.

The survey indicates that the total amount of ceiling land distributed in 4 selected villages is 14.7 acres and the number of beneficiary 49. These 14.7 acres of land form a part of a big patch of 18 acres distributed among 61 beneficiaries spreading over 7 villages. 'The survey clearly finds that none of these beneficiaries are in possession of the land. Our study area includes 49 beneficiaries from 4 villages who have lost their land to the previous landowners. In fact these beneficiaries have never come in possession.' Ignorant of legal procedures, these beneficiaries have spent thousands of Rupees to fight the case and contacting revenue authorities. Cases remain pending for years together in revenue and other courts and the poor beneficiary suffers. As the beneficiaries do not know the intricacies of the cases, lawyers and other intermediaries misguide them in the process of fighting cases. The poor beneficiary spends too much money without any return out of the same. Similar incidences are seen in four of our study villages. Table 8 gives a detailed account of the distributed ceiling surplus and Government wasteland in 10 selected villages of Puri.

It is significant to note that, of the total 49 beneficiaries 44 are women who were given ceiling land for their livelihood support. These beneficiaries could never get possession over the distributed land and spent considerable resources and time trying to contest cases before the court of law for decades together. Table 9 gives the extent of land lost by these beneficiaries. The study clearly finds that this situation is not true of the Study villages alone but would prevails in the rest of the district as well. The same situation also prevails in the Koraput district, in another Action Research conducted by the NIRD. This kind of paper settlement of land has actually proved a drain on the resources of the allotees and has involved them in endless legal battles. 'It was revealed during Jansunwai and the wrap up session with the district revenue officials that they treat all such pursuits as fruitless ventures and the assignees have been left to their own

Table 8: Profile of Ceiling Land Allotted to Beneficiaries

			Use of Land Allotted (in Acre)					
Sl. No.	Name of the Village	Total	Land Under Cultivation by the Allotees (in Acres)	%	Occupied by Previous Owner	%	Litigated	%
1	Sasandamodarpur	3	–		3		3	
2	Jagannath Bidyadharpur	3	–		3		3	
3	Girala	3	–		3		3	
4	Rebatiraman	5.7	–		5.7		5.7	
Total		14.7	0	0	14.7	100	14.7	100

Source: RCDC Survey.

Table 9: Household-wise Ceiling Land Status

Sl. No.	Name of the Village	Use of Land Allotted (in Acre)						
		Total	Land under Cultivation by the Allotees (in Acre)	%	Occupied by Previous Owner	%	Litigated	%
1	Sasandamodarpur	10	0		10		10	
2	Jagannath Bidyadharpur	10	0		10		10	
3	Girala	10	0		10		10	
4	Rebatiraman	19	0		19		19	
Total		49	0	0	49	100		100

Source: RCDC Survey.

devices. It is a cruel joke that the State Government appears to have played with the landless poor.'

Paper Distribution, Paper Possession but Real Trouble for the Assignees

Ramachandra Bhoi of village Girala, in PuriTehsil had received 1 acre of ceiling surplus land from Sipasarubali mauza in 1982 paying ₹88.90 as 'Salami'. He received 'Salami Paut'i a temporary record of right having Khata no. 144 from the revenue authorities. Ramachandra Bhoi along with other beneficiaries remained in cultivating possession and utilised the land for growing casurina and cashew trees until 1991. However, in 1991, the beneficiaries of the mentioned village fought over the piece of land distributed to them. All of them wanted proper demarcation of land. Later, in 1991, Ramachandra along with 5 other beneficiaries filed a case in the High Court of Orissa to demarcate the land and redistribute it. ADM Puri, Revenue Officer Puri, Tehsildar, Puri and Secretary Revenue Department, Government of Orissa were parties to the case. On 1st January 94, the High Court of Orissa gave a verdict vide case OJC. No. 1482 to demarcate and distribute the land within 3 months time period. In spite of the court's order, the beneficiaries' problems remain unaddressed. Presently, Ramachndra Bhoi is dead now and his son Jalandhara Bhoi represents him. But, the land is yet to be demarcated and distributed among the beneficiaries. Moreover the surrounding land has been acquired by IDCO to be used for industrial purpose. The land ceiling beneficiaries have not been able to solve their dispute and utilise the land.

In villages of Sasandamodarpur, Jagannath Bidhyadharpur and Girala Ceiling surplus land of Amogha Barabati Mouza was distributed in 1999–2000. During that time the Tahasildar distributed Patta to 10 beneficiaries of Sasandamodarpur, 2 beneficiaries of GadhiaPattana and 11 beneficiaries of Jagannath Bidyadharpur.

They remained in possession over the land for a period of six months. When the beneficiaries started agricultural operation in their respective fields, the previous owner forcefully prevented them from doing so. Later he filed a case to take possession over the land. In 2004, the RI stopped taking tax from the beneficiaries. The land remains litigated till now. This is a clear case where the revenue authorities are in collusion with the landlords. Where the beneficiary has been dispossessed forcefully it is the duty of the revenue authorities that restore possession to them. There is also a liability of criminal trespass on the landlord for which he stands to be prosecuted in the criminal court. Instead the revenue authorities have stopped receiving rent from them. Rent is received without prejudice and it does not create any right in respect of the land. The Government cannot go behind the terms of its own deed of settlement which includes the payment and receipt of rent as an inalienable right.

Government Wasteland

The Government wastelands comprised a sizeable source of land resources in the immediate wake of the abolition of the intermediary interests. According to the decided policies of the Government this reserve of land should have supplemented the land base of the landless and satiated the land hunger of these classes. The intermediaries exercised a strict vigil over their corpus of wastelands and usually settled it for a sizeable consideration. However, in place of price they usually charged 'Salami' which represented a capitalised value of rent. In the immediate wake of the take over of the intermediary interests the outgoing intermediaries made settlement of such lands to their cronies, near relatives and even on fictitious names. Thus, this corpus was usurped by the rural elite who had a stranglehold over the rural landless and the poor.

During 1974–1976, Government wasteland was distributed in many revenue circles in Brahmagiri Tehsil. Hundreds of acres of encroached lands were settled in the name of persons encroaching these lands. These lands were distributed in the Government process of settling Encroachment Cases and Revenue Miscellaneous cases. During the process, the, Revenue Inspectors filed many cases of Encroachment and Revenue Miscellaneous case in the name of beneficiaries and received penalty from beneficiaries to settle the land in their name. These beneficiaries are presently in possession of the land as per the 1974/1976 lease record. After 1980, some of the influential beneficiaries got their ROR corrected in Tehsil office. Beneficiaries got Patta and ROR copy from Tehsil and every year paid tax in the concerned R.I circles. But some of the cases remained pending in Revenue Department. Presently all the beneficiaries are in possession of the land as per the previous lease record (ROR copy). However, since 2004, the concerned Revenue Inspectors stopped accepting tax without giving any written order to the beneficiaries in village namely Gadarodanga, Budhakhera, Golara,

and Kankadadeep. Other than this, there are reports of distribution of land to more than one beneficiary in the same family. On the one hand, some beneficiaries face entitlement problem on the other some families possess land more than the prescribed limit.

In Brahmagiri Tehsil, Government wasteland nearer to Lake Chilka remains waterlogged for more than six months a year. The locals use the land for prawn and pisciculture. But here also traders belonging to high caste groups, the traditional fishing community uses the land mostly. The poor and Scheduled Castes community is not allowed to use the land in the same area where the upper caste operates and the Scheduled Castes are pushed to deep see for fishing.

Government land was distributed on lease in Jagadala Mauza in 1972–1974. Settlement operations were under progress at that point of time. After completion of the process in 1976, the land was found recorded as 'Anabad'. The beneficiaries were in possession of the land as per the previous lease record. After 1980 some of the beneficiaries were able to get their ROR corrected in Tehsil office. These beneficiaries paid the tax in retrospect effect and got 'K' form Patta. However, since 2003–2004 the revenue officials have stopped receiving tax from them without any notice. An entry in the finally published record-of-rights has a presumption of correctness attached to it. However, this is a rebuttable presumption and the Government may take steps to correct the same. In this instant the revenue authorities are not prepared to take steps for the correction of wrong entries in the record-of-rights. Moreover, an entry in the Jamabandi once created cannot be reversed without having heard the rightsholder as it adversely affects his rights.

In Kankadadeep, a total of 54 acres of Government wasteland were allotted to 26 beneficiaries of the village. The beneficiaries are in possession of the land as per the previous lease record. The Revenue Inspector, Bhandarikuda declines to accept rent from the beneficiaries since 2004. This is quite against the instructions of the GoI. Before a Patta is made over to the beneficiary the land is to be measured, demarcated and corrections made in the record-of-rights with a Jamabandi created in favour of the settlee. The revenue authority cannot just refuse to take rent from the settlee without having cancelled the Pattas for which it shall be necessary to hear them first. None of these procedures have been followed. There is no other way to describe this action except as arbitrary.

In Golara, a total of 28 acre of Government wasteland was allotted to 14 beneficiaries of the village. The beneficiaries are in possession of the land as per the previous lease record. But Revenue Inspector of Bhandarikuda does not accept tax from beneficiaries in 2004. The beneficiaries had got K. Form Patta in 1974/1976. Few beneficiaries were also given K.C.C. loan from Bank. Again, this practice is wrong and against the established practice as well as against Government instructions. This fact was brought to the notice of the revenue authorities at the time of the interface but they refuse to accept the same. The fact that such malpractices continue at such large scale without the Collector of

the District taking a note of it and correcting the same speaks volumes that the revenue administration is not being carried in accordance with law.

In Gadaroadanga Government wasteland was distributed on lease in Gadaroadanga Mauza in 1972–1974. During that time settlement operation was in process. After completion of the process in 1976, the land was found recorded as Abada Yogaya Anbadi'. The beneficiaries are in possession of the land as per the previous lease record. After 1980 some of the beneficiaries got their ROR corrected in Tehsil office. These beneficiaries paid the tax in retrospect effect and some beneficiaries also got ROR Copy. However, in 2003–2004 the beneficiaries of Gadaroadanga revenue officials stopped receiving tax from 12 beneficiaries. The beneficiaries are in dark about the status of the land. This is again against the rules and the established practice. An entry in the finally published record-of-rights is not sacrosanct and is fully rebuttable.

In addition to this, Government wasteland distribution for homestead purpose has raised some vital issues. Some villages in Brahmagiri Tehsil were allotted Government wasteland and were issued K. form Patta simultaneously. 'K 'form Patta is an intimation slip from the Revenue Department to own the land legally and pay tax until final Patta is issued. It is surprising that, these lands have been converted to 'Gramya jangal' category in the settlement process in mid 1970s. Now these families face difficulty in getting Resident certificate, caste certificate and bank loan, etc even though they are the residents of the village. The villagers expressed that during settlement and consolidation operation the authorities do not recognise the distributed land and follow records to make necessary changes in the new document. The numbers of affected allotees in these 6 study villages are 151, which is 69 per cent of the total number. Table 10 gives details of the distributed Government wasteland in the selected villages.

Table 10: Government Wasteland

		Status of Land Allotted (Household Wise)				
Sl. No.	Name of the Village	Total	Land under Possession by the Allotees	Entitlement Problem	Sold	Any Other
1	Gadarodanga	112	108	49	4	12 cancelled
2	Harichandanpur	14	14	6		
3	Doani	33	23	33		33 Category of land changed
4	Budhakhera	24	24	24		24 Cancelled
5	Kankadadeep	26	26	26		26 Cancelled
6	Golara	14	13	13	1	14 Cancelled
	Total	223	208	151	5*	109

Source: RCDC Survey.

Note: *Two beneficiaries have sold all the land allotted to them and rests five have partially sold their land to others.

Table 11: Entitlement Status of the Distributed Land (Ceiling Surplus + Wasteland)

Sl. No.	Name of the Village	Total Ben. HHs	Patta Issued	Lease Patta Issued	Year of Issue	Possession Status
1	Sasandamodarpur	10	10	–	1999–2000	Not in possession
2	Jagannath Bidyadharpur	10	10	–	1999–2000	Not in possession
3	Girala	10	10	–	1999–2000	Not in possession
4	Rebatiraman	19	19	–	1999–2000	Not in possession
5	Gadarodanga	112	63	49	1972–1976	In possession
6	Harichandanpur	14	0	14	1972–1976	In possession
7	Doani	33	0	33	1972–1976	In possession
8	Budhakhera	24	0	24	1972–1976	In possession
9	Kankadadeep	26	0	26	1972–1976	In possession
10	Golara	14	0	14	1972–1974	In possession
	Total	272	11241%	16059%		

Source: RCDC Survey.

As per the survey in study villages' Pattas were issued to the allotees of both ceiling surplus and Government wasteland. However, in case of Government wasteland K form Patta was issued to the allotees. On the other hand, the ceiling land allotees are not in possession and the cases are under dispute. Similarly in Government wasteland 69 per cent of allotees do not have permanent record-of-rights (ROR). Patta was issued at some point of time and then cancelled without any notification. The beneficiaries have a feeling that unless the record is corrected in the settlement process, the previous Pattas are meaningless. Table 11 gives the list of allotees having entitlement problem in all types of distributed land.

Landless Status

In spite of the effort to distribute land to the poor (landless) through various schemes the landlesness status of the village has not improved. It is difficult to assess the status of landless in a village. The revenue record, especially the ROR is not updated for years together. The family size grows over the generations and the land remains undivided. At the same time, bigger patches of land gets divided to small patches as the size of family grows and divided from joint families to nuclear families. Often this hampers the consolidation activity conducted in the area. Sale and mortgage of land has also affected adversely on the landless figure of the villages. Driven by poverty the allotees tend to sale or mortgage their land.

Table 12: Landless Status in the Selected Villages

Sl. No.	Name of the Village	Total HHs	Landless
1	Sasandamodarpur	219	37
2	Jagannath Bidyadharpur	311	23
3	Girala	94	16
4	Rebatiraman	125	101
5	Gadarodanga	238	33
6	Harichandanpur	76	30
7	Doani	78	44
8	Budhakhera	94	10
9	Kankadadeep	44	05
10	Golara	155	38
	Total	1,434	337

Source: RCDC Survey.

Updating of sale purchase status on a regular basis and correction of ROR is not done regularly. All these earlier mentioned problems make the landless situation a complex one in all the villages. Table 12 gives a picture of the landless status in the selected villages.

Sale and Purchase of Land Follows No Rule: A Case from Brahmagiri

Bibhu Prasad Das son of Kasinath Das of village Naranapur of Tehsil Brahmagiri had purchased a piece of land measuring 0.61 acres from Sri Gauda gobinda Das Goswami, Mahanta of Radhakanta Matha, in 1968. He had paid ₹379 for the land and got it registered in his name. Later during settlement operation in 1976, he got the ROR corrected and officially he was allotted 0.61 acres vide, khata. 16, plot no 1275 and 1341. Again during Chakabandi operation in 1995–1996, he got a Chakabandi Patta having Khata no.36 and plot no.1257 and 1168. Ever since he is paying tax regularly.

On 26 September 2007, the present Mahanta of the Matha filed a case on behalf of Matha challenging the records as illegal. Now, Bibhu and other poor tax paying farmers do not know the future of the land.

Interpreting Endowment Act and understanding implications of land laws is a difficult task for the beneficiaries purchasing the land. Now Bibhu and others have nothing to spend to get back their piece of land.

Conclusion

The instant Study comes out with significant findings which reflect on our entire system of land management. Some of these research findings are as follows:

1. There is no seriousness attached to the land ceiling programme in the present scheme of governance. Only 26 per cent of the ceiling land could be distributed and the remaining land is mostly locked up in litigation. It is significant to note that many of these cases have been pending before Revenue Courts as well. There appears no reason why these cases have pended for decades altogether. It is clear that the administration has lost focus on the land ceiling programme.
2. There is no concerted attempt to get these cases disposed of from the Hon'ble High Courts and the other judicial fora. The Government and the District Administration have failed to use the considerable legal expertise at its disposal and the landlords have continued with impunity in possession of these land resources.
3. Where the settlement of land has been made these have continued in possession of landlords while records indicate delivery of possession. This indicates a deep continuing nexus between the landed interests and the revenue officials at the time of delivery of possession at that time and the revenue officials. This depicts the nature of the land management.
4. Neither the District Administration nor the State Administration appeared to have paid any attention to the task involved in Land Reforms. In the interface there was a deliberate attempt to palm off the issues to the civil courts.[6] The settlees who were present were repeatedly advised to approach the civil court for adjudication of their title. They would not budge from this position even when it was pointed out to them there was no involvement of title and therefore there was no need to get it adjudicate. When the final notification of land is made under ceiling laws the rights, title and interest of the previous owner ceases and the land vests into the State free from all previous encumbrances. The settlement of land with the landless has the effect of vesting of the land with full rights, title and interest. This basic position of law was not appreciated even by the senior revenue officials present at the time of the interface, and one suspects deliberately so. The consequence is that the revenue administration refused to act whereas it has full powers to put the assignees under possession and prosecute the landlords for having illegally ousted the lawful assignees from possession.
5. The assignees of land have been left completely to their own devices. Neither the District nor the State Administration have come out with a

[6] Proceedings of the Interface dated the 5th June 2009 at Puri; mimeo, Land Reforms Division, National Institute of Rural Development, Hyderabad.

scheme to provide legal and moral assistance to these people with the result that they have emerged impoverished and strained due to the legal battles.

6. There is provision for providing financial assistance to the settlees of ceiling lands. However, this assistance does not appear to have been provided.
7. There is also provision for the use of NREGs on the land of the ceiling assignees. This provision also not been used for assisting the ceiling assignees.
8. Due to litigation and cases pending in the court and Tehsil offices ceiling land allotees remain in dark about the status of the land, which remain undecided for years' together. Initially, they get the Patta for the allotted land and later they are driven out of the land for wrong possession. All these make the situation confusing for the landless families. Ignorant of legal hassles, the beneficiaries try to take help of all possible alternatives and move from person to person and office to office in search of solution. In all our study villages, the allotees are mostly women where they have less or no knowledge about the present status of the allotted land. In case the land is returned to the previous owner, a clear cut information or notice should be given to the allotees about the same. That would prevent the allotees from spending money on the piece of land on a regular basis. Moreover, an alternate piece of land should be arranged for these families especially for the women. This is a classic case where the revenue office acts on behalf of the landlords and inefficiency of the highest order. They refuse to acknowledge the legal provisions even when the position was explained to them.
9. Distribution of Pattas by different Government in different period is not being recognised in settlement operations in the Revenue Department working at the Tehsil level. Six of our study villages reveal that though K form Patta had been issued to the wasteland beneficiaries, they are not treated as official allotees and subsequently tax is not collected from them by the revenue authorities deliberately. It is interesting to note that settlement operation has been completed in the area after distribution of such land. But this distribution was not recognised in Settlement process. This situation is impossible as the Government being the principal landlord has to be heard and accorded a voice in the settlement process. This also speaks volumes regarding the poor quality of survey operations.
10. In Puri district distribution of Government wasteland follows no rules and regulations. Our survey report says some landless families have not received any land, where as more than one person from the single family those are not among the landless category has been considered as allotee. The present survey reflects distribution of land has been carried out without proper field and official document verification.

11. Mostly the distributed lands are allotted to the beneficiaries without physical demarcation of the area. Land Pattas are distributed in a single day without verifying the possession and user status of the land. Subsequently, in later days the actual possession of the land becomes difficult for the landless and poorer families. While distributing land, the revenue authorities should give possession in the presence of police, PRI members and other traditional leaders of the village for amicable end to these types of issues. The poor and powerless beneficiaries would be benefited by this kind of arrangement.
12. The current status of Land Reforms is to be viewed more in historical context. Bulk of the Land Reforms has taken place in the early and middle 70s and since then it has become a ritualistic formalism with the bureaucracy, the Planning Commission for its five yearly exercise and the political parties for dutiful mention in the election manifesto. On the field Land Reforms has lost steam and the landlord lobby is in process of asserting itself over the bureaucratically driven and managed programme. The assignees of ceiling surplus, homestead and Government wasteland feel the heat as the revenue officials who had once vested them with the land rights in respect of these categories of land dispossess them of their gains in collusion with the landed rural elite. Even when the civil society based organisations take up the cause of the landless poor they fail to evoke a positive response.
13. This leads to a macabre conclusion that Land Reforms in Orissa have acquired a mythical character and they are in the process of a roll back.